

CHAPTER 9

An Act to amend the Restoration of Pre-War Trade Practices Act, 1942, with respect to the period by reference to which obligations are imposed on employers in respect of departures from trade practices and the time at which such obligations are to take effect, and with respect to the application of that Act to Northern Ireland.
[15th December 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Period to which obligation to restore trade practices relates.

1.—(1) For subsection (1) of section one of the principal Act (which imposes on employers an obligation to restore and maintain or permit the restoration and continuance of certain trade practices obtaining immediately before the war period as defined in that Act which have been departed from during that period) there shall be substituted the following subsection:—

“(1) Where, during the period beginning with the third day of September, nineteen hundred and thirty-nine, and ending with the fifteenth day of August, nineteen hundred and forty-five, any trade practice obtaining immediately before that period in any undertaking has been departed from in that undertaking, the employer shall, subject to the provisions of this Act, be under an obligation—

(a) to restore or permit the restoration of the trade practice before the expiration of two months from such date as His Majesty, on the recommendation of the Minister, may by Order in Council appoint; and

(b) to maintain or permit the continuance of the trade practice for eighteen months from the date when the restoration is effected or the date appointed as aforesaid, whichever is the later.

A draft of any Order in Council under this subsection shall be laid before Parliament, and the Minister shall not recommend His Majesty to make the Order unless an Address has been presented by each House of Parliament praying that the Order be made.”

(2) For subsection (2) of the said section one (which makes provision as to undertakings which began to be carried on during the war period) there shall be substituted the following subsection:—

“(2) Where any undertaking or any branch of an undertaking began to be carried on during the period mentioned in the foregoing subsection, the employer shall, subject to the provisions of this Act, be under an obligation—

- (a) before the expiration of two months from the date appointed under the foregoing subsection, to introduce, or permit the introduction of, such trade practices as obtained immediately before that period in undertakings or branches of undertakings carried on in circumstances most nearly analogous to those of the undertaking or branch in question, except trade practices which have been departed from in those undertakings or branches after the end of that period; and
- (b) to maintain, or permit the continuance of, the trade practices for eighteen months from the date when their introduction is effected or the date appointed as aforesaid, whichever is the later.”

(3) In subsection (3) of the said section one, for the words “the war period”, in both places where they occur, there shall be substituted the words “the period mentioned in subsection (1) of this section”, and in subsection (1) of section two of the principal Act for the words “the war period” there shall be substituted the words “the period mentioned in subsection (1) of the foregoing section”.

(4) In subsection (1) of section nine of the principal Act, for the words “the foregoing provisions” there shall be substituted the words “section seven or section eight”.

2.—(1) In section thirteen of the principal Act (which contains Application of certain modifications of the Act in its application to Northern principal Act Ireland) there shall be inserted, after the word “modifications”, to Northern Ireland, the following paragraph:—

- “(a) in subsection (1) of section one, for the words “such date as His Majesty, on the recommendation of the Minister, may by Order in Council appoint” there shall be substituted the words “such date as the Ministry of Labour and National Insurance for Northern Ireland may by order appoint”, and for the last sentence of that subsection there shall be substituted the sentence “No order shall be made under this subsection unless

a draft thereof has been laid before the Parliament of Northern Ireland and has been approved by resolution of each House of that Parliament";

and the existing paragraph (a) of that section shall be renumbered (aa) and for the words in that paragraph "for references" there shall be substituted the words "for other references".

(2) For the references in the said section thirteen to the Ministry of Labour for Northern Ireland there shall be substituted references to the Ministry of Labour and National Insurance for Northern Ireland, and the reference to the Rules Publication Act (Northern Ireland), 1925, shall be construed as a reference to that Act as amended by the Statutory Rules (Period of Laying) Act (Northern Ireland), 1950.

Short title,
citation,
construction,
interpretation
and repeal.

3.—(1) This Act may be cited as the Restoration of Pre-War Trade Practices Act, 1950, and the principal Act and this Act may be cited together as the Restoration of Pre-War Trade Practices Acts, 1942 and 1950.

(2) This Act and the principal Act shall be construed as one.

(3) In this Act the expression "the principal Act" means the Restoration of Pre-War Trade Practices Act, 1942.

(4) The definition of "war period" in section eleven of the principal Act, section eight of the Emergency Laws (Transitional Provisions) Act, 1946 (which amends the said definition) and so much of subsection (1) of section five of the Emergency Laws (Miscellaneous Provisions) Act, 1947, as extends the said section eight, are hereby repealed.

CHAPTER 10

Reinstatement in Civil Employment Act, 1950

ARRANGEMENT OF SECTIONS

Section.

1. Reinstatement rights of reserves called up for whole-time service and persons enlisted for service in Korea.
2. Reinstatement rights of persons voluntarily extending their service under Part I of National Service Act, 1948.
3. Reinstatement rights of persons who accept commissions.
4. Special provisions in case of persons serving for two periods.
5. Modification and adaptation of various sections of National Service Act, 1948.
6. Expenses.
7. Application of Act to persons whose service ended before the commencement thereof.
8. Interpretation.
9. Power to extend to Isle of Man.
10. Short title.